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File No.: EXP202213516

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following BACKGROUND

FIRST: On May 19, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against MADRID TOURISTIC CAPITAL, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202213516

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection, and based on the following FACTS

FIRST: Ms. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on December 5, 2022. The complaint is directed against the entity MADRID TOURISTIC CAPITAL, S.L. with NIF B87435673 (hereinafter, the respondent), for the installation of a video surveillance system located at CALLE LEÓN Y CASTILLO 140, LAS PALMAS DE GRAN CANARIA, with indications of a possible breach of the provisions of personal data protection regulations.

The reasons supporting the complaint are as follows:

The complainant states that on December 3, 2022, she visited the facilities of the respondent and noticed that a video surveillance camera was installed at the reception, without being signposted by the required informative signs of the monitored area, indicating that the person who attended her at those facilities also did not provide her with information regarding the data processing.

She provides an image of the location of the camera.

The documents submitted are:

- Photographic report

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28001 – Madrid

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2/13

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on December 31, 2022, according to the certificate included in the file.

Once the notification was made, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an additional attempt at notification in paper form was made for informational purposes, in accordance with the provisions of Article 42 of the LPACAP - by postal mail - which was notified on January 17, 2023, according to the certificate included in the file.

The respondent has not responded to the actions of forwarding and request for information notified.

THIRD: On March 5, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data

Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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3/13

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, and their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (image of individuals) carried out through the reported video surveillance system complies with the provisions established in the GDPR.

III

Alleged infringement

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the safety of persons and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the interested parties with the information indicated in Articles 13 and 14 of the GDPR.

In order for the information duty provided for in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this sense, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information in the second layer must be available in a place easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

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This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether interior or exterior. In the

event that the monitored space has several accesses, this distinguishing mark of the monitored area must be present at each of them.

This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to make the context of the surveillance clear.

IV

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, in order to comply with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system with the aim of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained cannot be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD, must be fulfilled in the terms already indicated.

4.- Images of public roads cannot be captured, as the processing of images in public places can only be carried out by the Security Forces and Bodies with prior government authorization.

In some cases, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the security purpose.

That is, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location.

And, in such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

The installed cameras cannot capture images of third-party private spaces and/or public spaces without a duly justified cause, nor can they affect the privacy of passersby freely moving through the area.

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5/13

The placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without justified cause is therefore not permitted.

In no case will the use of surveillance practices beyond the environment subject to the installation be allowed, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Images cannot be captured or recorded in spaces owned by third parties without the consent of their owners or, where applicable, of the individuals present in those spaces.

It is deemed disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

5.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities.

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording was obtained.

6.- The responsible party must maintain a record of activities of the treatments carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The responsible party must conduct a risk analysis or, where applicable, a data protection impact assessment, to detect risks arising from the implementation of the video surveillance system, evaluate them, and, where appropriate, adopt the appropriate security measures.

8.- When a security breach occurs that affects the treatments of cameras for security purposes,

provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and Resolutions" / "Regulations"),

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6/13

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the section "Guides and Tools").

Also of interest, in the case of carrying out low-risk data treatments, is the free tool Facilita (in the section "Guides and Tools"), which, through specific questions, allows for the assessment of the responsible party's situation regarding the personal data processing they carry out, and where applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

V

Possible administrative infringement

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the facts presented violate the provisions of Article 13 of the GDPR, which could constitute an infringement classified under Article 83.5 of the GDPR, which states the following:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

- b) the rights of the data subjects under Articles 12 to 22; (...)"

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

- h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law."

VI

Proposal for sanction

Article 58.2 of the GDPR establishes:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

- d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time frame;

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(...)

i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this section, depending on the circumstances of each particular case.”

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

With respect to the infringement of Article 13 of the GDPR, taking into account the facts presented and without prejudice to what may result from the instruction of the procedure, it is considered that the sanction that would correspond to be imposed is an administrative fine.

The fine imposed must be, in each case, individual, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR.

In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved under Article 42,
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

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For its part, regarding letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.

- d) The possibility that the conduct of the affected party could have included the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

The balance of the circumstances considered, regarding the infringement committed by violating the provisions of Article 13 of the GDPR, allows for an initial assessment of a fine of 1,200 euros (one thousand two hundred euros).

VII

Possible measures

If the infringements are confirmed, it could be agreed to impose on the controller the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”.

In such a case, in the resolution that is adopted, this Agency may require the controller to, within the determined period:

1. Prove that they have placed the informative sign in the monitored areas (it must identify, at a minimum, the existence of processing, the identity of the controller, and the possibility of exercising the rights provided in those provisions), locating this device in a sufficiently visible place, both in open and closed spaces.
2. Prove that they maintain the information referred to in Articles 13 and 14 of the GDPR available to the affected parties.

It is warned that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which could lead to the initiation of further administrative sanctioning procedures.

VIII

Conclusion

Therefore, in accordance with the above, the Director of the Spanish Agency for Data Protection, AGREES:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the entity MADRID TOURISTIC CAPITAL, S.L., with NIF B87435673, for the alleged infringement of Article 13 of the GDPR, classified in Article 83.5.b).

SECOND: TO APPOINT R.R.R. as the instructor and S.S.S. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the actions carried out prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP, hereinafter), the sanction that may correspond would be an ADMINISTRATIVE FINE of 1,200 € (one thousand two hundred euros) for the infringement committed, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to the entity MADRID TOURISTIC CAPITAL, S.L., with NIF B87435673, granting a hearing period of ten business days for them to make allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the procedure number that appears in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for making allegations to this initiation agreement, which will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 960 € (nine hundred sixty euros), resolving the procedure with the imposition of this sanction.

Similarly, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction,
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10/13

The sanction will be established at €960 (nine hundred sixty euros) and its payment will imply the termination of the procedure, with the imposition of the corresponding measures, if applicable.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction will be established at €720 (seven hundred twenty euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that you choose to proceed with the voluntary payment of either of the amounts indicated above, €960 or €720, you must make it effective by depositing it into account no. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The sanctioning procedure will have a maximum duration of twelve months from the date of the agreement to initiate or, if applicable, from the draft agreement to initiate. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Unique Enabled Electronic Address (dehu.redsara.es) and the Electronic Notifications Service (notificaciones.060.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive the notice of availability of notifications and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal can be filed against this act.

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11/13

Director of the Spanish Agency for Data Protection

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SECOND: On June 2, 2023, the party being claimed has proceeded to pay the sanction in the amount of €720, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the renunciation of any action or appeal in the administrative route against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

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12/13

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with regard to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure and their effectiveness will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202213516, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER MADRID TOURISTIC CAPITAL, S.L. to notify the Agency within one month of the adoption of the measures described in the legal grounds of the Agreement of initiation transcribed in this resolution.

THIRD: TO NOTIFY this resolution to MADRID TOURISTIC CAPITAL, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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13/13

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